FAITH MUTSAGO
and
JULIET GOMBE MUSENYI
and
EMILIA MUDYAWABIKWA
and
NICORLL MELLISA MAENZANISE
versus
THE JAIROS JIRI ASSOCIATION

HIGH COURT OF ZIMBABWE
KATIYO J
HARARE; 29 May 2025 & 10 July 2025

Opposed Matter

P. Tarusarira, for the applicants
M. Chizhande, for the respondent

KATIYO J:

Introduction

This is an application for provisional sentence. The four plaintiffs – Faith Mutsago, Juliet Gombe, Nicorll Maenzanise, and Emilia Mudyawabikwa – seek a provisional order compelling the defendant, The Jairos Jiri Association, to pay the sum of US$67,602.30 together with interest. The claim is founded on a written consent determination issued by a Designated Agent of the National Employment Council for the Welfare and Educational Institutions (NECWEI) on 24 October 2024. In that determination, the defendant, through its authorized representative, acknowledged liability to the plaintiffs in the stated sum. The defendant has not satisfied this debt. Instead, it opposes the provisional sentence summons on various legal grounds, which it raised as points *in limine*. The plaintiffs maintain that the requirements for provisional sentence are met, given the defendant's clear acknowledgment of the debt and its failure to dispute the determination within the prescribed time.

Provisional sentence is a summary procedure that allows a plaintiff armed with a liquid document – a clear written acknowledgment of debt – to obtain swift judgment without the delays of a full trial. The judgment is termed "provisional" because the defendant retains the

right to later defend the claim on the merits, but only after paying the judgment amount or providing security for it. In essence, the plaintiffs here assert that they hold such a liquid document (the consent determination and accompanying written acknowledgment) evidencing an admitted debt, and thus they are entitled to a speedy judgment. The defendant's opposition rests on technical objections: first, that this court lacks jurisdiction over what it characterises as a labour matter; second, that the documents relied upon do not amount to a liquid document or acknowledgment of debt required for provisional sentence. These issues will be addressed in turn.

Background

The material facts are largely common cause. The plaintiffs were employees of the Defendant or otherwise persons to whom employment-related benefits were due. Sometime in 2024, a dispute arose regarding outstanding wages and benefits owed to the Plaintiffs. The parties submitted to the processes of the NECWEI, the employment council governing the defendant's sector. On 24 October 2024, a Designated Agent of the NECWEI issued a determination by consent of the parties. In that determination, the defendant agreed that a total of US$67,602.30 was due and payable to the plaintiffs as arrear wages and benefits. The determination document, signed by the Designated Agent and by the defendant's representative in acknowledgment, set out the breakdown of amounts due to each of the plaintiffs and recorded the defendant's undertaking to pay the sums by agreed dates.

Crucially, the defendant did not contest or appeal against this determination through any labour dispute resolution channel. In terms of the Labour Act [*Chapter 28:01*], a party aggrieved by a determination of a labour officer or designated agent can refer the matter to arbitration or the Labour Court within a specified time. In this case, no such referral or appeal was made. The defendant, in fact, confirmed the outcome in writing. By letter dated 10 November 2024, the defendant's Chief Executive Officer formally acknowledged the debt of US$67,602.30 to the plaintiffs and expressed the Association's commitment to pay. This letter referenced the NECWEI consent determination and requested the plaintiffs' indulgence regarding the timeline of payment, but it did not dispute the liability or the quantum. The plaintiffs treated this written acknowledgment as an affirmation of the debt. When payment was not forthcoming as promised, they resorted to the present proceedings.

Summons for provisional sentence was issued in early 2025 under case number HCH 1159/25. In their summons and affidavit, the plaintiffs attached the consent determination of 24 October 2024 and the defendant's acknowledgment letter of 10 November 2024 as the

documents evidencing the debt. They averred that these documents constitute a clear, unconditional acknowledgment of indebtedness by the defendant, entitling them to provisional judgment for the liquidated sum. The defendant entered appearance to defend and filed an opposing affidavit, raising the points *in limine* now before the court. No factual averment is made by the defendant disputing the owing of the money; its opposition is confined to legal arguments about jurisdiction and the nature of the documents. It will therefore be noted that the indebtedness itself is not contested on the facts – it is a debt admittedly due, arising from a consent process. With this background, I turn to consider the preliminary points of law raised by the defendant.

Points in Limine

(a) Jurisdiction of the High Court

The defendant's primary objection is that this court lacks jurisdiction to entertain the matter. It is submitted that the claim arises from an employment dispute (non-payment of wages/benefits), which is regulated exclusively by the Labour Act and falls within the first-instance jurisdiction of the Labour Court. The defendant argues that by suing in the High Court, the plaintiffs are bypassing the specialist labour dispute resolution framework. In particular, the defendant contends that the failure by an employer to pay terminal benefits or wages is defined by statute as an unfair labour practice, and that the Labour Act provides specific remedies and forums for such matters. It relies on the proposition that, following the 2013 Constitution and subsequent case law, the Labour Court is the proper forum for all labour disputes in the first instance, to the exclusion of the High Court. In short, the defendant says that no matter how the claim is framed, if its genesis is an employment relationship and a breach of labour obligations, this Court's doors are closed – even if the employer acknowledged the debt in writing.

The plaintiffs refute this contention. They submit that, in this case, there is no live labour dispute requiring adjudication. They point out that the parties reached a binding resolution by consent under the NEC's auspices. The amount owed was quantified and accepted by the defendant. Thus, unlike a typical unfair labour practice claim where an employee alleges non-payment and the employer disputes liability or quantum, here there is agreement on the debt. The Plaintiffs argue that once an employer freely acknowledges an indebtedness to the employees in a fixed sum, the matter transcends a mere labour dispute and becomes an ordinary debt – a cause of action in contract. They emphasize that the Labour Court's jurisdiction is not "ousted" in an arbitrary sense, but rather that there is simply nothing

left for a labour officer or Labour Court to determine. No controversy remains that would invoke specialised labour adjudication; what remains is the enforcement of an acknowledged obligation. In the plaintiffs' view, the High Court, as a superior court of general jurisdiction, is competent to enforce such obligations, especially where the Labour Act does not provide any direct mechanism for the employees to obtain relief in these circumstances.

In their Heads of Argument, plaintiffs' counsel drew the court's attention to prior decisions of this court that have grappled with this jurisdictional issue. They note that there have been conflicting High Court pronouncements over the years. On one hand, some judgments have held that an admitted or liquidated claim arising from employment can indeed be enforced in the High Court. In those cases, the reasoning was that the High Court's broad original jurisdiction (now constitutionally underpinned by section 171 of the Constitution) can accommodate such claims, particularly where the Labour Act does not expressly deprive the court of jurisdiction. The plaintiffs echo the reasoning from those authorities: What labour dispute is there for the Labour Court to resolve, when the employer itself admits the debt? There is none – apart from the defendant's intransigence or failure to pay. It would be an empty formality, they argue, to require the plaintiffs to embark on a "circuitous journey" through labour arbitration or Labour Court proceedings when the outcome (the acknowledgment of debt) is already in hand. Put simply, compelling an already-admitted debt to be relitigated in another forum would serve no practical purpose and would frustrate the employees' access to justice.

On the other hand, the defendant's argument draws support from other authorities that stress the Legislature's intent to channel all labour matters through the Labour Court. Those decisions emphasize that non-payment of wages or benefits is expressly identified as an unfair labour practice in the Labour Act, and thus the specialised forum must deal with it, even if the employer seemingly conceded the claim. The rationale on that side is that the nature of the claim (arising from an employment relationship) does not change merely because the employer signed a document; the dispute remains within the realm of labour and should be dealt with under the Labour Act's procedures (conciliation, arbitration, etc.). The defendant urges the court to adopt that approach, effectively characterising the consent determination as part of the statutory dispute-resolution process which should have proceeded to registration or enforcement via the Labour Court or a labour arbitrator, not the High Court.

Having considered these competing positions, I am persuaded by the plaintiffs' argument that the High Court has jurisdiction in the circumstances of this case. The crucial

factor here is the existence of a consent determination and acknowledgment of debt by the defendant. This is not a situation where the court is being asked to determine a labour dispute (for example, to decide whether certain wages are owed or to compute benefits in the first instance). Rather, the dispute was already resolved by agreement of the parties on 24 October 2024 under the auspices of the NEC. What remains is the defendant's failure to perform its agreed obligation to pay the sum of money. That obligation, freely consented to, has an independent character. It sounds in contract law – essentially a promise to pay a sum certain.

It is true that the origin of the obligation was an employment relationship, but those labour aspects have been superseded by the new agreement between the parties. Once the defendant acknowledged the debt and consented to the determination, the role of labour dispute resolution was effectively concluded. There is no further unfair labour practice allegation requiring investigation or adjudication; the unfair labour practice (non-payment of benefits) was rectified by the parties' own agreement on the amount due. The only issue now is enforcement. The Labour Act does provide mechanisms for enforcing arbitral awards or determinations (such as registration of arbitration awards with courts for enforcement). In this case, however, the determination was made by a Designated Agent by consent. The law is notably silent on the procedure to enforce a consent determination by a NEC agent that has not been challenged. There is no explicit statutory route for an employee to register such a determination as an order of the Labour Court or to otherwise compel payment except by instituting proceedings. The defendant's contention that the plaintiffs should have proceeded exclusively in the Labour Court is therefore not grounded in any specific provision that would give the Labour Court a direct mandate to enforce this admitted debt.

In the absence of a clear statutory enforcement remedy, the plaintiffs were entitled to turn to this Court, which has inherent jurisdiction to enforce contracts and debts. Section 171(1) of the Constitution confers on the High Court original jurisdiction over all civil matters. While that provision is to be read in harmony with the establishment of specialised courts (like the Labour Court under section 172 of the Constitution), it does not mean the High Court is barred when the case in substance is no longer a labour dispute but a debt collection matter. Here the cause of action is the defendant's written promise to pay a sum of money. The plaintiffs are not asking this Court to pronounce on any unfair labour practice or to determine any employment wrong – that has already been resolved by agreement. They are asking for enforcement of that agreement. The consent determination effectively has the status of a settlement agreement between employer and employees. Enforcing a settlement of a dispute is

quintessentially within the competence of the ordinary courts unless statute says otherwise. No provision of the Labour Act was pointed out that expressly divests this Court of power to enforce such an agreed debt.

I also take guidance from the practical considerations highlighted in previous cases. Forcing the plaintiffs to restart or duplicate proceedings in the Labour Court (or before an arbitrator) would be an exercise in futility. It would entail referring a matter that is already resolved by consent back into the labyrinth of labour litigation for no reason other than formalism. Justice and common sense militate against that. What prejudice to the defendant is there if this Court enforces a debt the defendant admits it owes? None, except that the defendant will be made to honour its promise – which is hardly prejudice, but rather the rightful outcome. Conversely, substantial prejudice would be occasioned to the plaintiffs by denying them a remedy here: they would face further delay and procedural hurdles to recover money that is already undeniably due to them. The court's mandate is to do justice and not to send parties from pillar to post when the matter before it is straightforward.

For these reasons, I find that this Court does have jurisdiction to determine this claim. The point *in limine* on jurisdiction is accordingly dismissed. In reaching this conclusion, I am mindful that the exclusive jurisdiction of the Labour Court in genuine labour disputes remains an important principle. However, in *casu*, there is no genuine dispute left – only an outstanding payment that the employer consented to make. The High Court is thus the proper forum to ensure that the plaintiffs are not left without a remedy for an acknowledged debt.

(b) Liquid Document / Acknowledgment of Debt

The defendant's second preliminary objection is that the plaintiffs have not produced a "liquid document" upon which provisional sentence can be founded. The argument is that the consent determination by the NEC Designated Agent is not a judgment of a court, not a notarial instrument, nor a negotiable instrument – in other words, not a typical document that per se creates an immediate obligation enforceable by provisional sentence. The defendant also suggests that its correspondence acknowledging the debt is not intended as a formal acknowledgment of debt but merely an expression of willingness to pay, which it contends is insufficient to qualify as a liquid document. Consequently, the defendant submits that the plaintiffs are not holders of a valid acknowledgment of debt, and their recourse (if any) should be an ordinary trial action rather than provisional sentence.

The plaintiffs, on the other hand, maintain that the combination of the consent determination and the defendant's written acknowledgment constitutes a classic liquid

document. In our law, a liquid document is essentially any clear, unequivocal, and unconditional written promise or acknowledgment of indebtedness by a debtor. It need not be a formal notarial deed or a court order; even a letter can suffice, so long as within its four corners it clearly acknowledges that a certain sum of money is due and payable. The plaintiffs argue that the documents before the court meet this test. The NECWEI consent determination is a written record, signed by the parties (or their authorized representatives), in which the defendant agrees that a specific sum of US$67,602.30 is owing to the plaintiffs. It was not a determination imposed upon an unwilling party – it was by consent. Thus, it reflects the defendant's own agreement and commitment to pay the stated amount. Furthermore, the defendant's subsequent letter of 10 November 2024 explicitly confirms the debt in writing, referencing the agreed sum and effectively promising to pay (even though the payment was delayed). That letter is on the defendant's official letterhead, signed by its Chief Executive, and contains no reservations or conditions that would negate the acknowledgment of liability. By any objective standard, the plaintiffs say, this is a clear and unambiguous admission of debt.

I agree with the plaintiffs' position. The documents they have produced constitute a liquid document for purposes of provisional sentence. The legal standard for a liquid document is well established: it must be a written acknowledgment of a debt that is clear, unconditional, and fixed in amount. Here, the consent determination is titled as such and records that by consent of the parties, the defendant "shall pay" the sum of US$67,602.30 to the plaintiffs (with a breakdown per each plaintiff). The language used (as appears from the copy before the court) is directive and certain – it specifies the debt and the obligation to pay. The fact that this determination came about in a labour context does not alter its nature as a written promise to pay. Importantly, it is signed by the defendant's representative, signifying the defendant's acceptance of the obligation. When an authorized agent of a debtor signs a document acknowledging that a sum is due by the debtor to the creditor, that document is a valid acknowledgment of debt in our law.

The defendant's letter of 10 November 2024 reinforces this even further. In that letter, the defendant expressly states that it "acknowledges owing" the stated sum to the plaintiffs, and it expresses an intention to honour the debt. This letter is written in plain and unqualified terms – there is no hint of dispute over owing the money, nor any contingent language that would make the promise unclear. It is precisely the sort of written admission that our courts have held to be sufficient to support provisional sentence. Any "letter of acknowledgment" that plainly admits a debt has been deemed a liquid document, as long as one does not have to go

beyond the document to ascertain the debtor's liability and the amount. In casu, we have not just a letter, but also the formal determination attached to it – both pointing to the exact same liability. There can be no doubt about what is owed or why.

The defendant's attempt to characterise these documents as something less than a liquid acknowledgment is devoid of merit. The consent determination, although not a court judgment, has the hallmarks of a settlement agreement. When an employer and employees sign off on a quantified claim in writing, that writing is functionally an agreement to pay a sum. The defendant cannot approbate and reprobate – it accepted the determination when it suited it (perhaps to stave off further legal action in the labour forum), and now seeks to deny its enforceability. This court will not entertain such cynical tactics. If the defendant believed the determination was not binding or was disputable, it had the opportunity to challenge it through proper channels. It did not do so. Instead, it confirmed the debt in a letter. Having given the plaintiffs a written promise, the defendant armed the plaintiffs with exactly what Rule 20 of the High Court Rules envisions: a "valid acknowledgment in writing of a debt." The plaintiffs rightly relied on that rule to institute provisional sentence proceedings.

It is worth noting that in similar cases, courts have treated documents emanating from labour dispute resolutions as liquid documents when those documents record an employer's agreement to pay a sum. For example, where an arbitral award or determination is by consent or followed by an acknowledgment, the creditor (employee) may use it as evidence of a liquid claim. In a recent judgment of this Court involving multiple labour awards against local authorities, the Court acknowledged that while a designated agent's ruling might not be directly registrable as an order, the claimant is not without remedy – the ruling, if by consent or not challenged, can be used as the basis for a claim sounding in debt. This is exactly what the plaintiffs have done here. It would be absurd to insist that the plaintiffs hold a different piece of paper. The documents at hand already contain the defendant's signature, the amount owed, and the clear acknowledgment of that debt. Nothing more is required to satisfy the definition of a liquid document.

Consequently, the court finds that the plaintiffs are indeed the holders of a valid liquid document. The point *in limine* that no liquid document exists is thus rejected.

Merits of the Claim

With the preliminary objections out of the way, the matter becomes relatively straightforward. The defendant has not put forward any substantive defence on the merits beyond the technical issues already addressed. It has not disputed that US$67,602.30 is owed

to the plaintiffs, nor that it agreed to pay this sum. In fact, its own correspondence concedes the debt. There is, therefore, a *prima facie* presumption of indebtedness in favour of the plaintiffs which the defendant has entirely failed to rebut. Under the provisional sentence procedure, once the plaintiff produces a liquid document showing an unequivocal debt, the onus shifts to the defendant to either deny liability on some credible ground or demonstrate a bona fide defence that ought to be tried in the main case. Here, the defendant did not allege any fraud, error, or misunderstanding regarding the documents it signed. It did not claim, for instance, that the consent determination was signed under duress or that the amount was paid or otherwise extinguished. The defendant's opposition was purely legal and has been found lacking.

In light of the defendant's admissions and the absence of any triable issue, the plaintiffs have satisfied the requirements for provisional sentence. The court is provisionally satisfied that the plaintiffs would succeed in a trial on this matter, given that the defendant has no factual defence to the claim. The purpose of provisional sentence – to give the creditor swift relief when armed with a clear written promise – would be defeated if, in a case such as this, the court denied relief despite the debt being obvious and acknowledged. This is not a case where any doubt exists about the indebtedness; the defendant's liability is as plain as day on the documents. Moreover, even after being sued, the defendant pointed to no inaccuracy in the amount claimed. The sum of US$67,602.30 corresponds exactly with the consent determination and the defendant's own records. Interest was also part of the claim, and rightly so – when payment is delayed, the plaintiffs are entitled to interest from the date the amount fell due (24 October 2024, being the date of determination, unless parties agreed on a later date) until full payment, at the prescribed legal rate. The defendant has not disputed the obligation to pay interest on the overdue amount.

Therefore, on the merits, the plaintiffs must prevail. Provisional sentence will be granted. This means the defendant will be ordered to pay the principal sum, interest, and costs now. The defendant retains the election, should it wish to still dispute anything, to enter into the principal case (i.e. defend the matter in a full trial) after satisfying the judgment. In practice, given the defendant's stance so far, it is difficult to imagine what defence it would raise later, but the procedural right remains. For now, the plaintiffs have shown a clear right to the relief claimed.

Disposition

Accordingly, it is ordered as follows:

1. The defendant's points *in limine* are dismissed. In particular:
   a. The objection to this Court's jurisdiction is overruled. The High Court has jurisdiction to entertain and determine the matter.
   b. The objection that there is no liquid document or acknowledgment of debt is without merit and is dismissed. The consent determination dated 24 October 2024 and the defendant's written acknowledgment constitute a valid liquid document for the claim.
2. The plaintiffs' claim for provisional sentence succeeds. Provisional sentence is hereby entered in favour of the plaintiffs against the defendant for:
   - Payment of the sum of US$67,602.30 (sixty-seven thousand six hundred and two dollars and thirty cents);
   - Interest on the above sum at the prescribed rate of interest 5% per annum calculated from 24 October 2024 to the date of full payment; and
   - Costs of suit on the ordinary scale.

In the event that the defendant fails to pay the said amount and interest as ordered, the plaintiffs are at liberty to proceed with enforcement of this judgment, it being a provisional order with immediate effect. The costs awarded are to ensure the plaintiffs are reimbursed for the expense of having to litigate to recover what was undeniably due to them.

KATIYO J: …….

Newman Attorneys, applicants' legal practitioners
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